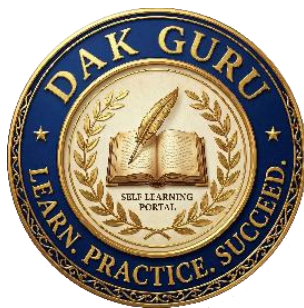




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STUDY BOOKLET

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

[The POSH Act, 2013]

with The POSH Rules, 2013 • Act No. 14 of 2013

Prepared for LDCE / Departmental Examination aspirants

DISCLAIMER

This booklet has been prepared strictly from an examination point of view. While every effort has been made to ensure accuracy and to incorporate the latest amendments, orders, notifications and judicial position in force, it is intended as a study aid only and does not constitute legal advice.

Readers and students are strongly advised to cross-verify every provision against the official Gazette of India and the source publications of the Ministry of Women and Child Development before relying upon it for any official, legal or examination purpose. In case of any conflict, the original Act, Rules and Gazette notifications shall prevail.

Content updated and verified as on 14 August 2026.

Legislative Status & Currency Note

This booklet reflects the law as currently in force. The following points capture the present statutory position so that nothing here is mistaken for a provision that has not yet come into effect.

IN FORCE — CURRENT POSITION (as on 14 August 2026)

Principal Act: The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 (Act No. 14 of 2013) — assented to on 23 April 2013, brought into force w.e.f. 9 December 2013 vide S.O. 3606(E) dated 9 December 2013.

Subordinate Rules: The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013, notified on 9 December 2013.

Terminology change: By the Repealing and Amending Act, 2016 (Act 23 of 2016, w.e.f. 6 May 2016), the words “*Internal Complaints Committee*” were substituted by “*Internal Committee*”, and “*Local Complaints Committee*” by “*Local Committee*” (across Sections 6, 7 and 24). The older abbreviations ICC / LCC are still in common use, but the correct statutory expressions today are **Internal Committee (IC)** and **Local Committee (LC)**.

Criminal-law interface: The Bharatiya Nyaya Sanhita, 2023 (BNS) replaced the Indian Penal Code, 1860 w.e.f. 1 July 2024. The text of the POSH Act has NOT itself been amended and still cites Section 509 IPC, but for all FIRs registered on or after 1 July 2024 the operative provision is Section 79 BNS (insulting the modesty of a woman). See the note under Section 11.

PROPOSED / ADJACENT DEVELOPMENTS — NOT PART OF THE PRESENT POSH ACT

Two Private Member’s Bills seeking to amend the POSH Act, and one separate 2026 Act affecting an adjacent area, are set out in detail at the end of this booklet under “Proposed Amendments & Related Developments.” None of the proposed POSH amendments has been enacted; the provisions in the main body of this booklet remain the law in force. Do not apply any of the proposed changes in the examination as current law.

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1. Overview & Background

The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 — popularly the “POSH Act” — gives statutory shape to the protection earlier secured only through the Supreme Court’s judgment in *Vishaka v. State of Rajasthan* (1997). It implements India’s obligations under the Convention on the Elimination of all Forms of Discrimination against Women (CEDAW), ratified on 25 June 1993.

The Act recognises that sexual harassment violates a woman’s fundamental rights to equality (**Articles 14 and 15**), to life and dignity (**Article 21**), and to practise any profession or carry on any occupation, trade or business (**Article 19(1)(g)**) under the Constitution of India.

Key facts at a glance

Particulars	Detail
Short title	POSH Act, 2013
Act number	Act No. 14 of 2013
Date of assent	23 April 2013
Date of commencement	9 December 2013 (S.O. 3606(E))
Extent	Whole of India
Nodal Ministry	Ministry of Women and Child Development
Subordinate legislation	POSH Rules, 2013
Number of Sections	30

Section 1. Short Title, Commencement and Application

- This Act may be called the **Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013**.
- It extends to the **whole of India**.
- It came into force on **9 December 2013**.

Section 2. Definitions

In this Act, unless the context otherwise requires —

(a) Aggrieved woman: A woman, of any age (no age limit) and at any place (workplace, office, dwelling, etc.), whether employed or not, who alleges to have been subjected to

any act of sexual harassment by the respondent. The definition is deliberately wide and covers women in the organised and unorganised sectors, clients, customers and domestic workers.

(b) Appropriate Government: The Central Government, a State Government or a Union Territory administration, as the case may be, depending on who funds / controls the workplace.

(c) Chairperson: The Chairperson of the Local Committee, nominated under Section 7(1).

(d) District Officer: An officer notified under Section 5.

(e) Domestic worker: A woman employed to do household work in any household for remuneration (in cash or kind), directly or through any agency, on a temporary, permanent, part-time or full-time basis, but does not include any member of the employer's family.

(f) Employee: A person employed at a workplace for any work, on a regular, temporary, ad hoc or daily-wage basis, directly or through an agent (including a contractor), with or without the knowledge of the principal employer — whether for remuneration or voluntarily, and whether the terms are express or implied. Includes a co-worker, contract worker, probationer, trainee, apprentice, etc.

(g) Employer: In relation to any Government department / establishment, the head of that department / office or any person responsible for its management, supervision and control; in other workplaces, the person/board responsible for management, supervision and control; and in a dwelling place or household, the person/household employing the domestic worker.

(h) Internal Committee: The Internal Complaints Committee constituted under Section 4. (The expression "Internal Complaints Committee" was substituted by "Internal Committee" w.e.f. 6 May 2016.)

(i) Local Committee: The Local Complaints Committee constituted under Section 6. (Substituted by "Local Committee" w.e.f. 6 May 2016.)

(j) Member: A Member of the Internal Committee or the Local Committee, as the case may be.

(k) Prescribed: Prescribed by rules made under this Act.

(l) Presiding Officer: The Presiding Officer of the Internal Committee, nominated under Section 4(2).

(m) Respondent: A person against whom the aggrieved woman has made a complaint under Section 9.

(n) Sexual harassment

Includes any one or more of the following unwelcome acts or behaviour (whether directly or by implication):

- (i) physical contact and advances; or
- (ii) a demand or request for sexual favours; or
- (iii) making sexually coloured remarks; or
- (iv) showing pornography; or
- (v) any other unwelcome physical, verbal or non-verbal conduct of a sexual nature.

(o) Workplace — includes

- (1) any department, organisation, undertaking, establishment, enterprise, institution, office, branch or unit which is established, owned, controlled or wholly or substantially financed by funds provided by the appropriate Government or local authority;
- (2) any private sector organisation, private venture, undertaking, enterprise, institution, establishment, society, trust, NGO, or service/production/distribution unit engaged in commercial, professional, vocational, educational, entertainment, industrial, health or financial activities;
- (3) hospitals or nursing homes;
- (4) any sports institute, stadium, sports complex or competition or games venue (residential or not);
- (5) any place visited by the employee arising out of or during the course of employment, including transportation provided by the employer for the journey;
- (6) a dwelling place or a house.

(p) Unorganised sector

An enterprise owned by individuals or self-employed workers engaged in the production or sale of goods or provision of services of any kind, where the enterprise employs **fewer than ten workers**.

Section 3. Prevention of Sexual Harassment

(1) No woman shall be subjected to sexual harassment at any workplace.

(2) The following circumstances, among others, if they occur or are present in relation to or connected with any act or behaviour of sexual harassment, may amount to sexual harassment:

- (i) implied or explicit promise of preferential treatment in her employment;
- (ii) implied or explicit threat of detrimental treatment in her employment;
- (iii) implied or explicit threat about her present or future employment status;
- (iv) interference with her work or creating an intimidating, offensive or hostile work environment for her; or
- (v) humiliating treatment likely to affect her health or safety.

EXAM POINTER

Clauses (i)–(iii) capture “quid pro quo” harassment (a benefit or threat tied to submission); clauses (iv)–(v) capture the “hostile work environment” form. Both are recognised forms of sexual harassment under the Act.

Chapter II – Internal Committee

Section 4. Constitution of Internal Committee

(1) Every employer of a workplace shall, by an order in writing, constitute a committee known as the “Internal Committee”. Where the offices or administrative units are located at different places or at divisional / sub-divisional level, an Internal Committee shall be constituted at all administrative units or offices.

(2) The Internal Committee shall consist of the following members nominated by the employer:

- **Presiding Officer** — a woman employed at a senior level at the workplace from amongst the employees. If a senior-level woman employee is not available, she may be nominated from another office / administrative unit of the same employer; and if not available there either, from any other workplace of the same employer or department.

- **Not less than two Members** — from amongst employees, preferably committed to the cause of women, or having experience in social work or legal knowledge.
- **One external Member** — from amongst NGOs or associations committed to the cause of women, or a person familiar with issues relating to sexual harassment.

(3) At least one-half of the total Members nominated shall be women.

(4) The Presiding Officer and every Member shall hold office for a period not exceeding three years from the date of nomination, as specified by the employer.

(5) The external Member shall be paid such fees or allowances as may be prescribed (see Fees & Allowances). Any Member found guilty of an offence / disqualifying conduct, or against whom proceedings are pending, or who has abused his position, shall be removed and the vacancy filled by fresh nomination.

Chapter III — Local Committee

Section 5. Notification of District Officer

The appropriate Government may notify a District Magistrate, Additional District Magistrate, the Collector or the Deputy Collector as the District Officer for every district, to exercise powers and discharge functions under this Act.

Section 6. Constitution of Local Committee

(1) Every District Officer shall constitute, in the district concerned, a “Local Committee” to receive complaints of sexual harassment from establishments where no Internal Committee has been constituted because they employ fewer than ten workers, or where the complaint is against the employer himself.

(2) The District Officer shall designate one nodal officer in every block, taluka and tehsil (rural / tribal area) and ward or municipality (urban area) to receive complaints and forward them to the concerned Local Committee within **seven days**.

(3) The jurisdiction of the Local Committee extends to the areas of the district where it is constituted.

Section 7. Composition, Tenure & Conditions of Local Committee

(1) The Local Committee shall consist of the following members nominated by the District Officer:

- **Chairperson** — nominated from amongst eminent women in the field of social work and committed to the cause of women.
- **One Member** — nominated from amongst women working in the block, taluka, tehsil, ward or municipality in the district.
- **Two Members** — at least one a woman — nominated from NGOs / associations committed to the cause of women, or persons familiar with issues relating to sexual harassment. At least one nominee should preferably have a background in law or legal knowledge, and at least one shall be a woman belonging to the Scheduled Castes, Scheduled Tribes, Other Backward Classes or a minority community notified by the Central Government.
- **Ex officio Member** — the concerned officer dealing with social welfare or women & child development in the district.

(2) The Chairperson and every Member shall hold office for a period not exceeding three years from the date of appointment.

Section 8. Grants and Audit

(1) The Central Government may, after due appropriation by Parliament, make grants to the State Government for payment of the fees / allowances under Section 7(4).

(2) The State Government may set up an agency / fund and transfer such sums as it thinks fit, out of which payments to the District Officer are made.

(3) Accounts of money so received shall be maintained and audited as prescribed, and the audited accounts with the auditor's report shall be furnished to the State Government.

Chapter IV — Complaint

Section 9. Complaint of Sexual Harassment

(1) Any aggrieved woman may make a complaint in writing to the Internal Committee (if constituted) or the Local Committee (if not), within **three months** from the date of the incident, and in the case of a series of incidents, within **three months** from the date of the last incident.

The Committee may extend this period by not more than a further three months if satisfied that circumstances prevented the woman from filing within the original period (recording reasons in writing). Where the woman is unable to make the complaint in

writing, all reasonable assistance shall be provided by the Presiding Officer / Chairperson or any Member.

(2) Where the aggrieved woman is unable to make a complaint on account of physical / mental incapacity or death or otherwise, her legal heir or such other prescribed person may make the complaint on her behalf.

CURRENCY NOTE (Section 9)

The three-month / further three-month limitation stated above is the LAW IN FORCE today. The Amendment Bill, 2024 (not yet enacted) proposes to extend this to one year and to remove the upper limit on condonation. Do not treat the one-year period as current until the Bill is passed and notified. (Full detail at the end of the booklet.)

Section 10. Conciliation

(1) Before initiating an inquiry, and **at the request of the aggrieved woman**, the Committee may take steps to settle the matter through conciliation. **No monetary settlement** shall be made as the basis of conciliation.

(2) Where a settlement is arrived at, the Committee shall record it and forward it to the employer / District Officer for action.

(3) Copies of the recorded settlement shall be given to the aggrieved woman and the respondent.

(4) Where a settlement is arrived at, no further inquiry shall be conducted. (However, if the woman informs the Committee that a term of the settlement has not been complied with, the Committee shall proceed to inquire / forward the complaint to the police.)

CURRENCY NOTE (Section 10)

Conciliation under Section 10 remains available in the law in force today. The Amendment Bill, 2024 (not yet enacted) proposes to omit Section 10 entirely. Until it is passed and notified, conciliation continues to apply.

Chapter V – Inquiry into Complaint

Section 11. Inquiry into Complaint

(1) Where the respondent is an employee, the Committee shall make an inquiry in accordance with the service rules applicable to the respondent; where no such rules exist, in the manner prescribed.

In the case of a **domestic worker**, the Local Committee shall, if a prima facie case exists, forward the complaint to the police within **seven days** for registering a case under **Section 509 of the Indian Penal Code, 1860** and any other relevant provisions.

IMPORTANT – IPC → BNS UPDATE (verify before exam)

The Act's text has not been amended and still reads "Section 509 IPC". However, the Indian Penal Code, 1860 was replaced by the **Bharatiya Nyaya Sanhita, 2023 (BNS)** w.e.f. 1 July 2024. The corresponding offence – insulting the modesty of a woman – is now **Section 79 BNS**. Therefore, any FIR registered on or after 1 July 2024 will be under Section 79 BNS (read with any other applicable provision), not Section 509 IPC.

Related mapping: the separate offence of "sexual harassment" under Section 354A IPC now corresponds to Section 75 BNS. (Section 354A and Section 509 are two distinct provisions – do not merge them.)

(2) Notwithstanding anything in Section 509 IPC (now Section 79 BNS), the court may, on conviction of the respondent, order payment of such sums to the aggrieved woman as it considers appropriate, having regard to Section 15.

(3) During the inquiry, the Committee has the same powers as a civil court under the Code of Civil Procedure, 1908 in respect of: summoning and enforcing the attendance of any person and examining them on oath; requiring discovery and production of documents; and any other prescribed matter.

(4) Both parties shall be given an opportunity of being heard, and a copy of the findings shall be provided to enable each party to make representations.

(5) The inquiry shall be completed within **ninety (90) days**.

Section 12. Action During Pendency of Inquiry

(1) During the pendency of an inquiry, on a written request by the aggrieved woman, the Committee may recommend to the employer to –

- transfer the aggrieved woman or the respondent to any other workplace;
- grant leave to the aggrieved woman up to **three months** (in addition to her normal entitlement); or
- grant such other relief as may be prescribed (e.g., restraining the respondent from reporting on her work performance).

(2) The leave granted is in addition to the leave she is otherwise entitled to.

(3) The employer shall implement the recommendations and send a report of implementation to the Committee.

Section 13. Inquiry Report

(1) On completion of the inquiry, the Committee shall provide a report of its findings to the employer / District Officer within **ten (10) days**, and the report shall be made available to the concerned parties.

(2) If the allegation is not proved, the Committee shall recommend that no action is required.

(3) If the allegation is proved, the Committee shall recommend that the employer / District Officer —

- (i) take action for sexual harassment as misconduct in accordance with the applicable service rules; and
- (ii) deduct from the salary / wages of the respondent such sum as it considers appropriate to be paid to the aggrieved woman or her legal heirs, determined as per Section 15. (If deduction is not possible, the respondent may be directed to pay; on failure, the sum may be recovered as an arrear of land revenue.)

(4) The employer / District Officer shall act upon the recommendation within **sixty (60) days** of its receipt.

Section 14. Punishment for False or Malicious Complaint and False Evidence

Where the Committee concludes that the allegation is malicious, or that the complainant has knowingly made a false complaint or produced any forged or misleading document, it may recommend action against her / him in accordance with the applicable service rules.

SAFEGUARD

A mere inability to substantiate a complaint or provide adequate proof shall NOT attract action against the complainant. Malicious intent must be established through a separate inquiry conducted in the prescribed manner before any action is recommended. The provision also covers a witness who gives false evidence or produces forged documents.

Section 15. Determination of Compensation

For determining the sums payable to the aggrieved woman under Section 13, the Committee shall have regard to —

- (a) the mental trauma, pain, suffering and emotional distress caused to the aggrieved woman;
- (b) the loss in career opportunity due to the incident;
- (c) medical expenses incurred for physical or psychiatric treatment;
- (d) the income and financial status of the respondent; and
- (e) the feasibility of payment in a lump sum or in instalments.

Section 16. Prohibition of Publication of Identity / Proceedings

Notwithstanding anything in the **Right to Information Act, 2005**, the contents of the complaint, the identity and addresses of the aggrieved woman, respondent and witnesses, any information on conciliation / inquiry proceedings, the recommendations of the Committee and the action taken shall **not** be published, communicated or made known to the public, press or media in any manner. (Information regarding the justice secured may, however, be disseminated without disclosing identities.)

Section 17. Penalty for Publication of Identity / Proceedings

Any person entrusted with handling the complaint / inquiry who contravenes Section 16 shall be liable to penalty in accordance with the applicable service rules, or where none exist, in the manner prescribed (the Rules provide for a penalty up to Rs. 5,000 recoverable from such person).

Section 18. Appeal

(1) Any person aggrieved by the recommendations under Section 13 / 14 / 17, or by non-implementation of such recommendations, may prefer an appeal to the court or tribunal

in accordance with the applicable service rules; where none exist, in the prescribed manner (the Rules provide an appeal to the appellate authority under Section 2(a) of the Industrial Employment (Standing Orders) Act, 1946).

(2) The appeal shall be preferred within **ninety (90) days** of the recommendations.

Chapter VI – Duties of Employer

Section 19. Duties of Employer

Every employer shall –

- (a) provide a safe working environment, including safety from persons coming into contact at the workplace;
- (b) display at a conspicuous place the penal consequences of sexual harassment and the order constituting the Internal Committee;
- (c) organise workshops and awareness programmes at regular intervals to sensitise employees, and orientation programmes for Internal Committee members;
- (d) provide the Internal / Local Committee the necessary facilities to deal with the complaint and conduct the inquiry;
- (e) assist in securing the attendance of the respondent and witnesses before the Committee;
- (f) make available to the Committee such information as it may require;
- (g) provide assistance to the woman if she chooses to file a complaint in relation to the offence under the **Indian Penal Code, 1860 – now the Bharatiya Nyaya Sanhita, 2023** – or any other law in force;
- (h) cause to initiate action under the **Bharatiya Nyaya Sanhita, 2023 (formerly the IPC)** or any other law against the perpetrator (and, where the perpetrator is not an employee, at the workplace where the incident occurred), if the aggrieved woman so desires;
- (i) treat sexual harassment as misconduct under the service rules and initiate action for such misconduct; and
- (j) monitor the timely submission of reports by the Internal Committee.

LEGISLATIVE NOTE – IPC → BNS

Section 19(g) and (h) statutorily refer to the “Indian Penal Code (45 of 1860)”. Because the IPC stood repealed and replaced by the Bharatiya Nyaya Sanhita, 2023 w.e.f. 1 July 2024, any criminal action initiated today is taken under the corresponding BNS provisions (chiefly Section 79 BNS for insulting the modesty of a woman, and Section 75 BNS for sexual harassment).

Chapter VII – Duties & Powers of District Officer

Section 20. Duties and Powers of District Officer

The District Officer shall —

- (a) monitor the timely submission of reports furnished by the Local Committee; and
- (b) take measures necessary for creating awareness of the provisions of the Act and the rights of women.

Chapter VIII – Miscellaneous

Section 21. Committee to Submit Annual Report

(1) The Internal / Local Committee shall, in each calendar year, prepare an annual report in the prescribed form and submit it to the employer and the District Officer.

(2) The District Officer shall forward a brief report on the annual reports received to the State Government.

Section 22. Employer to Include Information in Annual Report

The employer shall include in the annual report of the organisation the number of cases filed and their disposal under the Act; where no such report is required, the employer shall intimate the number of cases to the District Officer.

Section 23. Appropriate Government to Monitor Implementation & Maintain Data

The appropriate Government shall monitor implementation of the Act and maintain data on the number of cases filed and disposed of in respect of sexual harassment.

Section 24. Appropriate Government to Publicise the Act

The appropriate Government may, subject to availability of resources —

- (a) develop relevant information, education, communication and training material, and organise awareness programmes to advance public understanding of the Act; and
- (b) formulate orientation and training programmes for members of the Local Committee.

Section 25. Power to Call for Information & Inspect Records

(1) The appropriate Government may, by written order, where it is necessary in the public interest or in the interest of women employees —

- (a) call upon any employer or District Officer to furnish information relating to sexual harassment in writing; and
- (b) authorise any officer to inspect the records and workplace, who shall submit an inspection report within the specified period.

(2) Every employer and District Officer shall produce all relevant information and documents in their custody before the inspecting officer.

Section 26. Penalty for Non-Compliance

(1) Where the employer fails to —

- (a) constitute an Internal Committee under Section 4(1);
- (b) take action under Sections 13, 14 and 22; or
- (c) contravenes or attempts / abets contravention of other provisions of the Act or rules,

he shall be punishable with fine which may extend to **Rs. 50,000**.

(2) On a subsequent conviction for the same offence after a previous conviction, the employer shall be liable to —

- (i) twice the punishment that might have been imposed on a first conviction (subject to the maximum provided for the offence); and
- (ii) cancellation / withdrawal / non-renewal of the licence or registration required to carry on the business or activity, by the Government or local authority.

Section 27. Cognizance of Offence by Courts

- (1) No court shall take cognizance of any offence under this Act except on a complaint made by the aggrieved woman or any person authorised by the Internal / Local Committee.
- (2) No court inferior to a **Metropolitan Magistrate** or a **Judicial Magistrate of the First Class** shall try any offence under this Act.
- (3) Every offence under this Act shall be **non-cognizable**.

Section 28. Act Not in Derogation of Any Other Law

The provisions of this Act are in addition to, and not in derogation of, any other law for the time being in force.

Section 29. Power of Appropriate Government to Make Rules

- (1) The Central Government may, by notification in the Official Gazette, make rules for carrying out the provisions of this Act.
- (2) Such rules may, in particular, provide for the fees / allowances payable to Members under Section 4(5); the nomination of Members under Section 7(1)(c); the fees / allowances to the Chairperson and Members under Section 7(4); and other prescribed matters.
- (3) Every rule made under this Act shall be laid before each House of Parliament, while it is in session, for a total period of **thirty days** which may be comprised in one session or in two or more successive sessions; and the rule takes effect subject to any modification or annulment agreed upon by both Houses.

Section 30. Power to Remove Difficulties

- (1) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions (not inconsistent with the Act) as appear necessary to remove the difficulty.
- (2) No such order shall be made after the expiry of **two years** from the commencement of the Act. Every such order shall be laid before each House of Parliament.

Key Provisions of the POSH Rules, 2013

The following operational details flow from the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Rules, 2013.

Fees & Allowances

Committee / Member	Allowance per day	Travel entitlement
Internal Committee — external (NGO) Member	Rs. 200	Train in 3-tier AC or AC bus, and auto / taxi; or actual amount spent, whichever is less. (Payable by the employer.)
Local Committee — Chairperson	Rs. 250	Train in 3-tier AC or AC bus, and auto / taxi; or actual, whichever is less.
Local Committee — Members (other than ex officio)	Rs. 200	Train in 3-tier AC or AC bus, and auto / taxi; or actual, whichever is less.

Manner of Inquiry into Complaint (Rule 7)

- The complainant shall submit **six copies** of the written complaint, along with supporting documents and the names and addresses of witnesses, to the Internal / Local Committee.
- On receipt, the Committee shall send **one copy** to the respondent within **seven working days**.
- The respondent shall file a reply, with a list of documents and the names and addresses of witnesses, within **ten days** of receiving the copy.
- If the complainant or respondent fails, without sufficient cause, to attend **three consecutive hearings**, the Presiding Officer / Chairperson may, after **fifteen days' written notice**, terminate the proceedings or pass an **ex-parte** order.
- **No legal practitioner** may represent any party at any stage of the proceedings before the Committee.
- A minimum of **three Members** (including the Presiding Officer / Chairperson) must be present to conduct the inquiry.

Consolidated Statutory Timelines

The single most exam-relevant table — keep these periods at your fingertips.

Stage	Time limit	Provision
Filing of complaint	Within 3 months of the incident (or last incident); extendable by up to 3 more months	Section 9
Nodal officer to forward complaint to Local Committee	Within 7 days	Section 6(2)
Notice / copy of complaint to respondent	Within 7 working days	Rule 7
Respondent's reply	Within 10 days of receiving the copy	Rule 7
Forwarding complaint to police (domestic worker)	Within 7 days	Section 11(1)
Completion of inquiry	Within 90 days	Section 11(5)
Submission of inquiry report	Within 10 days of completing the inquiry	Section 13(1)
Action by employer / District Officer on report	Within 60 days	Section 13(4)
Interim leave to aggrieved woman	Up to 3 months	Section 12(1)
Filing of appeal	Within 90 days of the recommendations	Section 18(2)
Notice before ex-parte order	15 days in advance	Rule 7
Tenure of IC / LC members	Not exceeding 3 years	Sections 4(4) & 7(2)

Penalties — Snapshot

Default / Contravention	Consequence
Failure to constitute IC, or non-compliance with Sections 13/14/22 or other provisions (first instance)	Fine up to Rs. 50,000 (Section 26)
Repeat of the same offence after a prior conviction	Twice the punishment + cancellation / withdrawal / non-renewal of licence or registration (Section 26)
Breach of confidentiality under Section 16 (publishing identity / proceedings)	Penalty as per service rules, or up to Rs. 5,000 under the Rules (Section 17)
False / malicious complaint, false evidence or forged documents	Action as per applicable service rules, after a separate inquiry (Section 14)

NATURE OF OFFENCE

Every offence under the Act is non-cognizable (arrest generally requires a warrant). Cognizance is taken only on a complaint by the aggrieved woman or a person authorised by the Committee, and only by a court of a Metropolitan Magistrate / Judicial Magistrate of the First Class or higher.

Recent Developments (Verified)

These developments do not amend the Act but materially affect compliance and are worth knowing.

1. SHe-Box Portal (29 August 2024)

The Ministry of Women and Child Development launched the revamped Sexual Harassment electronic Box (SHe-Box) on 29 August 2024 as a single-window, centralised digital platform on which any woman — in the organised or unorganised, public or private sector — can file and track a complaint. The portal automatically routes each complaint to the relevant Internal or Local Committee and builds a national database for monitoring.

2. Companies (Accounts) Second Amendment Rules, 2025 (effective 14 July 2025)

The Ministry of Corporate Affairs amended the Companies (Accounts) Rules, 2014 to require companies, in their Board's Report, to disclose the number of sexual-harassment complaints received, the number resolved, and the number pending for more than 90

days, along with a statement on compliance with the POSH Act and the constitution of the Internal Committee. This embeds POSH compliance into corporate governance.

3. Supreme Court — Aureliano Fernandes v. State of Goa (2023)

The Supreme Court, concerned at widespread non-constitution of Internal Committees, issued directions for nationwide compliance audits and effective implementation of the Act, reinforcing the duty of every employer and authority to maintain functional committees.

Proposed Amendments & Related Developments

READ THIS FIRST

Everything in this part is either a Bill that has NOT been enacted or a separate statute that does NOT amend the POSH Act. The law you must apply in the examination is the law set out in the main body above. This part exists only so that you recognise these proposals if they appear, and are not misled into treating them as current POSH law.

A. The POSH Amendment Bill, 2024 (Bill No. I of 2024) — NOT enacted

Introduced in the **Rajya Sabha on 2 February 2024** by **Dr. Sasmit Patra** as a Private Member's Bill. It is short and targets only Sections 9 and 10. As of 14 August 2026 it has not been passed by Parliament and has not received Presidential assent.

Exact clauses proposed:

- **Section 9(1)** — substitute “within a period of **one year** from the date of incident” (and the same for the last incident in a series) for the present “within a period of three months”.
- **Second proviso to Section 9(1)** — omit the words “not exceeding three months”, so that the Committee's power to condone delay would have **no upper limit**.
- **Section 10** — **omit entirely** (conciliation would cease to be available).

Stated rationale (Statement of Objects & Reasons): a trauma-affected woman may be unable to file within six months, so a one-year base period with unlimited condonation is fairer; and conciliation is problematic because a complainant may be coerced or pressured into a settlement, which undermines the dignity of women.

B. The POSH Amendment Bill, 2022 (Bill No. CXI of 2022) — NOT enacted

Introduced in the **Rajya Sabha on 8 December 2023** by **Dr. Fauzia Khan** as a Private Member's Bill (styled the "Amendment Act, 2022"). It is far more sweeping than the 2024 Bill: it would replace the Local Committee with a judicial "**Employment Tribunal**". As of 14 August 2026 it too has not been passed or assented to.

Exact clauses proposed:

- **General substitution** — replace "District Officer" with "**District Judge**", and "Local Complaints Committee" / "Local Committee" with "**Employment Tribunal**" wherever they occur.
- **New Section 6** — every District Judge to constitute an Employment Tribunal to receive complaints where no Internal Committee exists (or directly from the IC / aggrieved person), such complaints to be treated as **legal trials**; a nodal officer in every block / taluka / tehsil to forward complaints within seven days.
- **New Section 7** — Tribunal composition nominated by a District Court collegium: a Chairperson (retired woman judge), a retired District Court judge, an eminent social activist on gender discrimination, a local working woman, two eminent sociologists ($\geq$ one woman; $\geq$ one preferably with legal background; $\geq$ one from SC / ST / OBC / minority), and a female advocate of the District Court; tenure $\leq$ three years.
- **Section 9(1)** — replace the fixed three-month period with "within a **reasonable period of time**" having regard to the facts and the complainant's circumstances, as determined by the Tribunal (with discretionary extension).
- **Sections 13 & 14** — replace "recommend to" with "**direct**", making the Tribunal's outcome binding rather than recommendatory; the employer / District Judge to act on the **directions** within sixty days.
- **Section 20** — substitute "Local Committee" with "Employment Tribunal and Internal Committee".

Stated rationale: relying on the J.S. Verma Committee (2013), the Bill argues that in-house redressal through the LCC may suppress legitimate complaints and that a judicial Employment Tribunal would give greater cognizance to cases, improve efficiency and raise conviction rates; it also seeks to extend the complaint-filing period.

EXAM TAKE-AWAY ON THE TWO BILLS

- Both are **Private Member's Bills** — such Bills are very rarely enacted; none affects the current law.
- Current law remains: **3-month filing window (extendable by 3 months); conciliation under Section 10 available; Local Committee, not any "Employment Tribunal"**.
- **The two Bills also differ from each other** — the 2024 Bill only touches Sections 9–10; the 2022 Bill restructures the whole district-level machinery. Do not conflate them.

C. Related development — Transgender Persons (Protection of Rights) Amendment Act, 2026**ADJACENT LAW — DOES NOT AMEND THE POSH ACT**

Parliament passed the Transgender Persons (Protection of Rights) Amendment Bill, 2026 (Lok Sabha, 25 March 2026), which amends the Transgender Persons (Protection of Rights) Act, 2019 — chiefly by revising the definition of “transgender person” and strengthening penal provisions. It is a separate statute and does NOT amend the POSH Act, 2013 or change its women-only scope.

Relevance for POSH: it affects how organisations frame gender-inclusive anti-harassment policy and interacts with Rule 10(8) of the Transgender Rules, 2020 (separate committees in educational institutions). The POSH Act itself continues to protect “aggrieved women” only. Note also that claims circulating online of a “POSH Amendment Rules, 2026” extending the POSH Act to men and transgender employees are NOT supported by any official Gazette notification and should be disregarded unless and until verified against a primary source.

SOURCES RELIED UPON

Primary: the Act (Act 14 of 2013) and the POSH Rules, 2013 (Gazette of India, via indiacode.nic.in); Repealing and Amending Act, 2016 (Act 23 of 2016) for the terminology substitution; Bharatiya Nyaya Sanhita, 2023 for the criminal-law mapping; the texts of Bill No. CXI of 2022 and Bill No. I of 2024 as introduced in the Rajya Sabha (as supplied). Secondary (for recent / adjacent developments only): PIB releases on SHe-Box, the Companies (Accounts) Second Amendment Rules, 2025, and reporting on the Transgender Persons (Protection of Rights) Amendment Act, 2026. Students must reconfirm against the Gazette before relying on any provision.

Quick Revision Capsule

- ▶ **Statute:** POSH Act, 2013 — Act 14 of 2013; in force 9 Dec 2013; extends to whole of India.
- ▶ **Protected person:** Any “aggrieved woman” — any age, employed or not, organised or unorganised sector.
- ▶ **IC vs LC:** Internal Committee at every workplace with 10+ workers; Local Committee (district level) for <10 workers or when the complaint is against the employer.
- ▶ **IC composition:** Presiding Officer (senior woman) + ≥ 2 employee Members + 1 external (NGO) Member; $\geq$ half must be women; tenure ≤ 3 years.
- ▶ **LC composition:** Chairperson (eminent woman) + 1 local woman Member + 2 Members (one woman, one preferably with legal background, one from SC/ST/OBC/minority) + ex officio Member.
- ▶ **Complaint window:** 3 months (extendable by 3 more). [Bill 2024 proposes 1 year — not yet law.]
- ▶ **Conciliation:** Optional, only at woman’s request, no monetary settlement. [Bill 2024 proposes to omit — not yet law.]
- ▶ **Inquiry period:** 90 days; report in 10 days; employer acts in 60 days; appeal in 90 days.
- ▶ **Criminal route:** S.509 IPC → S.79 BNS (w.e.f. 1 Jul 2024); sexual harassment S.354A IPC → S.75 BNS.
- ▶ **Penalty:** Up to Rs. 50,000; repeat = double + licence cancellation.
- ▶ **Offence nature:** Non-cognizable; tried by Metropolitan / JMFC or higher.
- ▶ **Confidentiality:** S.16 overrides the RTI Act, 2005 — no disclosure of identities / proceedings.
- ▶ **Pending Bills:** 2024 Bill (Sasmit Patra): 1-year window + omit S.10. 2022 Bill (Fauzia Khan): replace LC with judicial “Employment Tribunal”. Both NOT enacted.

— End of Booklet —

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